



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: A Text Amendment amending subsections 6.6.3.b.3, 6.7.5, and 6.9.3.e of the Unified Development Code (UDC), changing building façade design requirements for multifamily residential development
Date: October 18, 2023

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/23/2023
- Public Services Committee 11/7/2023
- Second reading 11/13/2023
- Public Services Committee 11/21/2023
- Third and final reading 11/27/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their October 16, 2023 meeting and **voted 3-2 and 3-1** to recommend the Governing Body approve this application as amended.

The Planning Commission had a long discussion on the appropriateness of materials requirements and color requirements. After discussion, the Planning Commission divided the question into three sections. The changes to required windows in 6.7.5.b Façade Openings was postponed to a subsequent meeting. The changes to the various materials sections were amended to recommend the removal of all required materials for multifamily development, but to require two different colors at no minimum percentage. This amended motion passed 3-2. The changes to the requirements for carports was recommended for approval as proposed. This motion passed by a vote of 3-1 (one Planning Commission member recused themselves from the vote on this item).

The Ordinance attached to this submittal reflects the recommendations of the Planning Commission, and does not include amendments to 6.7.5.b Façade openings.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SUBSECTIONS 6.6.3.b.3, 6.7.5.c, AND 6.9.3.e OF THE UNIFIED DEVELOPMENT CODE (UDC), CHANGING BUILDING FAÇADE DESIGN REQUIREMENTS FOR MULTIFAMILY RESIDENTIAL DEVELOPMENT."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on October 16, 2023, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Subsection 6.6.3.b.3 Materials for Multi-dwelling buildings, of Subsection 6.6.3.b Building Design, of Subsection 6.6.3 General Residential Design, of Section 6.6 Residential Design Standards, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby repealed and replaced as set out in this section.

3. Façade Design. All attached dwelling and multi-dwelling building types shall be constructed according to the following façade standards. All buildings shall provide two distinct colors. Carports, stand-alone canopies, or other structures which only consist of vertical support posts shall not have any one color cover more than 70% of the post.

Table 6-18: Reserved

Section 4. That Subsection 6.7.5.c Building Materials, of Subsection 6.7.5 Building Design, of Section 6.7 Small Scale Commercial and Mixed-use Design Standards, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

- c. Building Materials. All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Buildings which are more than 50% residential dwelling units (by square footage) are exempt from the material requirements but are required to provide at least two colors on the building. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section if at least two distinct colors are provided on the post. No one color shall cover more than 70% of the post.

- 1 Primary Materials. All buildings shall have one primary material covering at least 30% of the building facades.
- 2 Secondary Materials. Buildings may have a secondary material covering up to 70% of the facades.
- 3 Accent Materials. Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades.
- 4 Permitted Materials. Exterior materials shall be permitted in accordance with ~~the following table:~~ Table 6-20.

Table 6-20: Small-scale Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted. Stone, unpainted.	Any of the Primary Materials may be used as Secondary Materials Glass Metal Siding and Roofing Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

- 5 Material Changes. Except for accent materials, changes in the façade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements of Sub-section a above.
- 6 Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:
 - (a) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
 - (b) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
 - (c) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
 - (d) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Section 5. That Subsection 6.9.4.e Building Materials, of Subsection 6.9.4 Building Design, of Section 6.9 General Commercial Design Standards, of Article 6 Design Regulations, of

the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

- e. Building Materials. All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Buildings which are more than 50% residential dwelling units (by square footage) are exempt from the material requirements but are required to provide at least two colors on the building. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section if at least two distinct colors are provided on the post. No one color shall cover more than 70% of the post.
 1. Primary Materials. All buildings shall have one primary material covering at least 30% of the building facades.
 2. Secondary Materials. Buildings may have a secondary material covering up to 70% of the facades.
 3. Accent Materials. Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades.
 4. Permitted Materials. Exterior materials shall be permitted in accordance with ~~the following table:~~ Table 6-21.

Table 6-21: General Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted. Stone, unpainted (or equal or better simulated material). Concrete Masonry Unit – Integrally tinted and textured	Any of the Primary Materials may be used as Secondary Materials Glass Metal Siding and Roofing Architectural Metal Panels or Tiles Color Concrete Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) Stucco (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

5. Material Changes. Except for accent materials, changes in the façade material shall only occur at horizontal expression lines. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements above.
6. Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:

- (a) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
- (b) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
- (c) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- (d) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

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PLANNING COMMISSION

OCTOBER 16, 2023

STAFF REPORT

REQUEST: A Text Amendment amending subsections 6.6.3.b.3, 6.7.5, and 6.9.3.e of the Unified Development Code (UDC), changing building façade design requirements for multifamily residential development

CASE NUMBER: PLTA-23-2

PREPARED BY: Seth Lloyd, Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code subsections 6.6.3.b.3, 6.7.5, and 6.9.3.e as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendment is to change various sections of code regarding façade design requirements for multifamily buildings. Multifamily buildings in the residential and mixed-use zones follow the design requirements found in 6.6. However, multifamily buildings are also called 'Urban Lofts' in certain scenarios, applying the design requirements of 6.7 in these cases; and multifamily buildings are allowed via conditional use in the commercial zones, which would apply the design standards of 6.9. Various zone districts also allow mixed-use buildings, which could be used as a majority multifamily and in some cases may have multifamily on the ground floor. The code amendment proposes removing the requirement for brick and stone for multifamily buildings and carports. It also proposes removing a display window requirement for multifamily construction and a few minor typographical edits to the affected sections.

The current code requires unpainted brick or stone on 30% of the building façades, and does not allow these to be replaced with simulated brick or stone materials. The current code also requires a minimum amount of display windows on the ground floor for 6.7 design standards, and all three types of design standards have been applied to carports in multifamily developments.

The affordable housing task force recommended that these items be modified such that brick or stone was not required on multifamily structures. A separate request for a text amendment also specifically requested that carports and other canopies not be required to provide brick or stone on the support pillars.

The requirement for brick and stone is largely aesthetic, as such materials are only a veneer on the materials actually used in construction and have little effect on the structure. Brick and stone may be more durable than other materials that could be selected for veneer. As a largely aesthetic regulation, Staff proposes changing the code to require two distinct materials and two distinct colors, instead of requiring brick or stone.

Staff's assumption is that the requirement of two different materials and colors (without brick and stone) is acceptable to the community. A small outreach event with the public substantiated Staff's assumption: apartment buildings with two different colors without brick and stone were preferred over buildings with brick and stone (a detailed breakdown of the event is found in the attachments).

It has been said that the market will charge whatever they can for apartment units, and therefore the cost of construction does not factor into play as much for rental rates. However, the cost of construction will factor into the overall number of units built, and typically a greater supply of units will make rents lower.

PROPOSED AMENDMENTS:

Subsection 6.6.3.b.3 Materials for Multi-dwelling buildings

(of 6.6.3.b Building Design, of 6.6.3 General Residential Design, of 6.6 Residential Design Standards):

3. for Multi-dwelling buildings. All attached dwelling and multi-dwelling building types shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. ~~. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section if at least two distinct colors are provided on the post. No one color shall cover more than 70% of the post.~~
 - (a) Primary Materials. All buildings shall have ~~not less than two~~one primary materials covering at least ~~30%~~90% of the building facades. ~~No one primary material may cover more than 70% of the facades. No one color shall cover more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment).~~
 - ~~(b) Secondary Materials. Buildings may have a secondary material covering up to 70% of the facades.~~
 - ~~(c)~~(b) Accent Materials. Buildings shall have at least one, ~~and may have up to two~~ accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
 - ~~(d)~~(c) Permitted Materials. Exterior materials shall be permitted in accordance with ~~the~~ Table 6-18.

Table 6-18: Residential Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted <u>(or equal or better simulated material)-</u> Stone, unpainted <u>(or equal or better simulated material)-</u> Glass (Opaque) Metal Siding & Roofing (non-corrugated) Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) Wood, aluminum, or fiber cement lap siding Wood, aluminum, or fiber cement board and batten siding	Any of the Primary Materials may be used as Secondary Materials Glass Metal Siding & Roofing Color Concrete Stucco (or equal or better simulated material) Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material) Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)

~~(e)~~(d) Material Changes. Except for accent materials, changes in the façade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements.

~~(f)~~(e) Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:

- (1) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
- (2) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
- (3) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
- (4) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Subsection 6.7.5.b Façade Openings

(of 6.7.5 Building Design, of 6.7 Small Scale Commercial and Mixed-use Design Standards):

- b. Façade Openings. Each facade facing a street shall have openings at street level and upper levels according to the following:
 1. Between 60% and 90% of all street-level facades between 2’ and 10’ above grade shall be transparent with views to the interior of the building. No window starting at a level of greater than 3.5’ above the street level should be included in the calculation. Where the interior operation or program of the building warrants screening from the street, a closed display window of at least 2.5 feet deep may be substituted along up to 50% of the linear distance of the façade. Any section of a building with residential dwelling units on the floor

- that predominately covers the space between 2' and 10' above grade are exempt from this requirement in the areas where the residential units are located.
2. No more than 20' of building frontage shall exist at the street level without window or door openings. On secondary or support streets that are not the primary pedestrian and retail streets of the Center, the Director may approve facades with greater than 20' of building frontage without window and door openings.
 3. Upper level openings shall occupy between 20% and 50% of the façade and consist of punched and regularly spaced openings to create a rhythm and pedestrian scale for the façade.
 4. Corner buildings with two street frontages may designate one frontage as the primary frontage; however, at least the first 30' of secondary frontage from the corner shall meet the above minimum opening requirements.

Subsection 6.7.5.c Building Materials

(of 6.7.5 Building Design, of 6.7 Small Scale Commercial and Mixed-use Design Standards):

- c. Building Materials. All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2' and 8' above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section if at least two distinct colors are provided on the post. No one color shall cover more than 70% of the post.
 1. Primary Materials. All buildings shall have one primary material covering at least 30% of the building facades.
 2. Secondary Materials. Buildings may have a secondary material covering up to 70% of the facades. Buildings which are more than 50% residential dwelling units (by square footage) may use any of the Secondary Materials as a primary material provided:
 - (a) No less than 2 primary/secondary materials are used;
 - (b) No one primary/secondary material covers more than 70% of the facades; and
 - (c) No one color covers more than 70% of the facades (colors shall be distinctly different, not shades of the same color – if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director's determination to the Board of Adjustment.
 3. Accent Materials. Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
 4. Permitted Materials. Exterior materials shall be permitted in accordance with Table 6-20. ~~the following table:~~

Table 6-20: Small-scale Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted <u>(or equal or better simulated material)-</u> Stone, unpainted <u>(or equal or better</u>	Any of the Primary Materials may be used as Secondary Materials Glass <u>(opaque)</u> Metal Siding and Roofing Color Concrete Stucco (or equal or better simulated material)	Any of the Primary or Secondary Materials may be used as an accent material Wood trim (or equal or better simulated material)

<u>simulated material</u> :-	Horizontal Wood Clapboard (or equal or better simulated material) Wood shingles (or equal or better simulated material) <u>Vertical Wood Board and Batten (or equal or better simulated material)</u>	Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)
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5. Material Changes. Except for accent materials, changes in the façade material shall only occur at horizontal expression lines, with the heavier material below the lighter material. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements of Sub-section a above.
6. Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:
 - (a) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
 - (b) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
 - (c) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
 - (d) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

Subsection 6.9.4.e Building Materials

(of 6.9.4 Building Design, of 6.9 General Commercial Design Standards):

- e. Building Materials. All buildings and accessory buildings over 200 square feet shall be constructed according to the following material standards. Percentage requirements for materials exclude windows or other openings. Carports, stand-alone canopies, or other structures which only consist of vertical support posts in the area between 2’ and 8’ above grade and are less than 2 stories in height shall be exempt from the materials requirements of this section if at least two distinct colors are provided on the post. No one color shall cover more than 70% of the post.
 1. Primary Materials. All buildings shall have one primary material covering at least 30% of the building facades. Buildings which are more than 50% residential dwelling units (by square footage) may use any of the Secondary Materials as a primary material provided:
 - (a) No less than 2 primary/secondary materials are used;
 - (b) No one primary/secondary material covers more than 70% of the facades; and
 - (c) No one color covers more than 70% of the facades (colors shall be distinctly different, if there is a debate over whether the proposed colors are distinctly different, an applicant may appeal the Director’s determination to the Board of Adjustment).
 2. Secondary Materials. Buildings may have a secondary material covering up to 70% of the facades.

3. Accent Materials. Buildings shall have at least one, and may have up to two accent or trim materials covering between 5% and 10% of the building facades. The accent shall be a separate material from the primary materials utilized on the building.
4. Permitted Materials. Exterior materials shall be permitted in accordance with Table 6-21. ~~the following table:~~

Table 6-21: General Commercial and Mixed-use Building Materials		
Primary Materials	Secondary Materials	Accent / Trim Materials
Brick, unpainted <u>(or equal or better simulated material)-</u>	Any of the Primary Materials may be used as Secondary Materials	Any of the Primary or Secondary Materials may be used as an accent material
Stone, unpainted (or equal or better simulated material).	Glass	Wood trim (or equal or better simulated material)
Concrete Masonry Unit – Integrally tinted and textured	Metal Siding and Roofing	Precast stone, or wood moldings or similar architectural details (or equal or better simulated material)
	Architectural Metal Panels or Tiles	
	Color Concrete	
	Horizontal Wood	
	Clapboard (or equal or better simulated material)	
	Wood shingles (or equal or better simulated material)	
	Stucco (or equal or better simulated material)	
	<u>Vertical Wood Board and Batten (or equal or better simulated material)</u>	

5. Material Changes. Except for accent materials, changes in the façade material shall only occur at horizontal expression lines. Alternatively, changes in the material may occur at differentiated structural bays that meet the horizontal massing requirements above.
6. Equal or Better Simulated Materials. Where “equal or better” simulated materials are permitted, they shall only be permitted by the Director as an Administrative Adjustment according to procedures and criteria in Article 2. The Director shall use the following additional criteria:
 - (a) The proposed material has an identical physical appearance as the material it intended to simulate, including color and texture, as perceived from any public spaces surrounding the property;
 - (b) The material presents benefits in addition to cost savings, such as reduced maintenance, or enhanced durability and performance;
 - (c) The material has a demonstrated track record of successful application and use that will result in equally long-lasting and sustainable appeal of the neighborhood as that of the permitted materials; and
 - (d) Use of equal or better materials may be conditioned upon compliance with all application and manufacturer specifications.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

The Comprehensive plan encourages the development of workforce housing and housing for Seniors (Principle 2). PlanCheyenne encourages workforce housing to be made of high-quality materials, and with architectural details that are functional and attractive (Policy 2.5.c). Another policy states that design standards should be created to address should be high-quality, but no specific materials are mentioned.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

(a) The governing body of any city or town, by ordinance, may:

(i) Regulate and restrict the:

(A) Height, number of stories and size of buildings and other structures;

(B) Percentage of lot that may be occupied;

(C) Size of yards, courts and other open spaces;

(D) Density of population; and

(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

(ii) Establish setback building lines.

(b) The governing body may divide the city or town into districts of such number, shape and area as it deems necessary, and within those districts it may regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land.

(c) Regulations may differ from one (1) district to another but shall be uniform for each class or kind of buildings within a district.

(d) All regulations shall be made:

(i) In accordance with a comprehensive plan and designed to:

(A) Lessen congestion in the streets;

(B) Secure safety from fire, panic and other dangers;

(C) Promote health and general welfare;

(D) Provide adequate light and air;

(E) Prevent the overcrowding of land;

(F) Avoid undue concentration of population; and

(G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.

(ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;

(iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and

(iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment: This amendment proposes modifying the Unified Development Code to modify sections of code in accordance with the general welfare and character of the community. The regulations and the modifications to the regulations are allowed by state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

“The amendment promotes the general health, safety and public welfare.”

This amendment would not adversely impact the general health, safety and public welfare of Cheyenne. While reducing construction costs, the amendment attempts to still assure the aesthetic values of the community are met.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code subsections 6.6.3.b.3, 6.7.5, and 6.9.3.e as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. Details on the public outreach accomplished prior to the Planning Commission mailing

Attachment 1

Details on the public outreach accomplished prior to the Planning Commission mailing

Staff conducted public outreach on the afternoon of October 5th by going to a local retail establishment and interacting with those at the premises (with the full knowledge and permission of the retail establishment). Staff engaged via discussion and survey (the survey is found on the next page). The interaction included a large board with large pictures of current apartment buildings in Cheyenne, each with a letter. The survey included smaller pictures of the same and asked each participant to rate each building as ‘preferred’, ‘acceptable’, or ‘not acceptable’.

The results are as follows:

	Preferred	Acceptable	Not Acceptable	Favorite Design	Code Status
A	7	4	0	1	Allowed under current code
B	9	2	0	4.5	NOT allowed – proposed to be allowed
C	0	4	7	0	NOT allowed
D	2	5	4	1	Allowed under current code
E	9	2	0	2	NOT allowed*
F	0	3	8	0	Allowed – proposed to NOT be allowed**
G	1	5	5	0.5	NOT allowed

Notes:

* While E has accent material and two different colors, it only has one primary material.

**F is allowed under current code, as current code states that ‘any primary material may be used as a secondary material’, and does not prevent primary materials from covering 100% of the façade. The proposed code amendment would not allow this building as material variation is required (proposed language: “No one primary material may cover more than 70% of the facades”).

Also, a few people stated they did not have time to take the survey, and two stated they had no preference when it came to the look of apartment buildings in Cheyenne.

It is understood that the sample size, timing, location, and frequency of the outreach makes the results non-scientific, but this outreach is better than no outreach at all.

The response for finding E desirable while the rejecting G and C may speak to a preference for the horizontal massing, vertical massing, or other element not directly related to materials (requirements for open space of this nature can be found in sections of 6.6.4.b).

Apartment Exterior Building Materials

For the sake of this exercise, assume an apartment building is being built just down the street from your residence. For each photo, check if you think the building's appearance is:

- “preferred” (apartment buildings should look like this)
- “acceptable” (it’s not great, but I’d be OK with apartments looking like this)
- “not acceptable” (apartments should not look like this)

A



- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

B



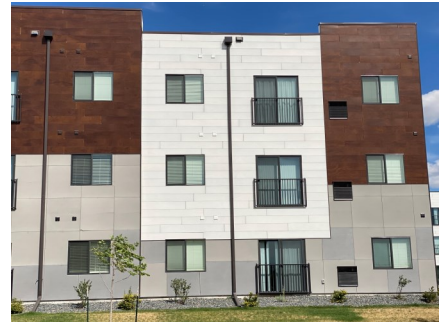
- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

C



- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

D



- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

E



- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

F



- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

G



- ☐ Preferred
- ☐ Acceptable
- ☐ Not acceptable

Which of these options is your favorite? ____

Options A, D, and F meet current code requirements, and options B, C, E and G do not.

Would you be in favor of these being allowed by code?

Yes, for ☐ B ☐ C ☐ E ☐ G (check all that apply),

Or ☐ No, none of these should be allowed